Precedent memo: Brightwater Dental v. Soto

Lane County Circuit Court, decided 2022-09-20 - memo by the employment group

1. Holding

The court enforced a 12-month non-compete against a hygienist. Written notice was given in the offer letter 19 days before the start date, which satisfied ORS 653.295.

2. Facts

Soto signed the offer letter on 2021-04-02 and started on 2021-04-21. She opened a competing practice 6 miles away in 2022-01.

3. Firm position

We represented Brightwater. The offer letter date decided notice; scope was reasonable at 12 months and 10 miles.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.